

CV-25-001402 ALEXANDER, STEVEN vs BURLYS CALIFORNIA BISTRO INC – a) Plaintiff's Motion for Attorney's Fees – GRANTED. b) Plaintiff's Motion for Amendment of Judgment – GRANTED as modified and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: a) The Court finds that Plaintiff is the prevailing party herein and is entitled to recover reasonable attorneys' fees pursuant to Civ. Code § 1717. Based on the moving papers and supporting evidence, the Court finds that the time expended and the hourly fees claimed are reasonable under the circumstances. Therefore, the Court finds that Plaintiff is entitled to recover to \$11,543.75 in attorney's fees from Defendant Gaynor. Gaynor argues she has no ability to pay, which may be accurate, but is not actionable at this stage. b) Burly's is the defaulted corporation, and judgment will be entered against them. The Court proposes a separate judgment against Burly's as attorney fees would be limited to the default schedule.

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